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Provision of May 9, 2024
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European
Parliament and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of
personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018,
containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU)
2016/679";

HAVING REGARD to the inspection report drawn up by the Municipal Police Command and Civil
Protection of the Municipality of Reggio Emilia, dated March 14, 2023, at the establishment named
"Caffetteria 77 Torrcaffé", located at Viale Umberto I No. 28/c, Reggio Emilia, of the sole proprietorship
"Caffetteria 77" of Dughetti Barbara, which confirmed the presence of an active and functioning video
surveillance system, consisting of two cameras capable of recording both customers and employees,
in this case, however, in the absence of the obligations provided for under Article 4 of Law No.
300/1970.

HAVING EXAMINED the documentation in the records;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTER: Dr. Agostino Ghiglia;

PREMISE

1. The ascertainment of the violation and the initiation of the procedure.

With a note received on June 30, 2023, and registered on July 3, 2023, the Municipal Police Command
and Civil Protection of the Municipality of Reggio Emilia transmitted to this Authority the report of the
inspection carried out on March 14, 2023, by personnel of the same Command, at the establishment
named "Caffetteria 77 Torrcaffé", located at Viale Umberto I No. 28/c, Reggio Emilia, of the sole
proprietorship "Caffetteria 77" (hereinafter "Company") of Dughetti Barbara, with its legal headquarters
at the same address.

The report indicates that at the aforementioned premises, the presence of a video surveillance system,
consisting of 2 regularly functioning cameras, was ascertained, which would be capable of recording
both customers and employees, in this case, however, in the absence of the obligations provided for
under Article 4 of Law No. 300/1970 (Workers' Statute) and therefore in violation of the provisions
regarding the processing of personal data.

It is noted that the report drawn up by the Municipal Police was signed by the owner of the
establishment, who confirmed the existence of an employee and that, during the investigation.
Based on the findings in the aforementioned report, a notification was made to the Company regarding
the initiation of the procedure for the adoption of the measures referred to in Articles 58, paragraph 2,
and 83 of Regulation (EU) 2016/679 (hereinafter "Regulation"), in accordance with the provisions of
Article 166, paragraph 5, of Legislative Decree No. 196 of June 30, 2003 (hereinafter "Code"), in
relation to the violation of the principle of lawfulness of processing (Article 5, paragraph 1, letter a) of
the Regulation in relation to Article 114 of the Code) and Article 88 of the Regulation regarding the

applicable discipline in this matter. Following the first notification that was unsuccessful as the Company's official PEC was not active, a second registered letter was sent, registered on October 26, 2023 (protocol no. 0146048/23) and transmitted on November 2, 2023, which was duly delivered.

2. The legal framework of the processing carried out.

The use of video surveillance systems can result, in relation to the positioning of the cameras and the quality of the recorded images, in the processing of personal data.

Such processing, which occurred in this case, must be carried out in compliance with the general principles contained in Article 5 of the Regulation. The data controller must also follow the guidelines contained in the provision on video surveillance - April 8, 2010 [1712680] (in this sense, also the FAQs on video surveillance published on the Authority's website), and in Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices.

Furthermore, if the video surveillance system is capable of recording employees during work activities, the associated processing of personal data is lawful only if it complies with the provisions of Article 4, Law No. 300 of May 20, 1970.

In fact, the processing of personal data carried out within the employment relationship, if necessary for the purpose of managing the relationship itself (see Articles 6, paragraph 1, letters b) and c); 9, paragraph 2, letter b) of the Regulation), must take place in compliance with the general principles indicated in Article 5 of the Regulation, and in particular the principle of lawfulness, according to which processing is lawful if it is in accordance with the applicable sector regulations (Article 5, paragraph 1, letter a) of the Regulation).

Consistent with this approach, Article 88 of the Regulation has preserved national provisions of greater protection ("more specific rules") aimed at ensuring the protection of rights and freedoms with regard to the processing of personal data of workers.

The national legislator has approved, as a more specific provision, Article 114 of Legislative Decree No. 196 of June 30, 2003 (hereinafter "Code") which, among the conditions for the lawfulness of processing, has established compliance with the provisions of Article 4, Law No. 300 of May 20, 1970. The violation of the aforementioned Article 88 of the Regulation is subject, if the requirements are met, to the application of an administrative pecuniary sanction pursuant to Article 83, paragraph 5, letter d) of the Regulation.

Based on the aforementioned Article 4, Law No. 300 of 1970, video surveillance systems, if they provide "also the possibility of remote control" of employees' activities, "may be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets," and their installation must, in any case, be carried out following the stipulation of a collective agreement with the unitary trade union representation or with the company trade union representations or, where it has not been possible to reach such an agreement or in the absence of representations, only if preceded by the issuance of a specific authorization by the Labor Inspectorate.

The activation and conclusion of this guarantee procedure is therefore an indispensable condition for the installation of video surveillance systems. The violation of this provision is subject to criminal penalties (see Article 171 of the Code).

3. The outcome of the investigation and the sanctioning procedure.

Based on the findings made by the Municipal Police, it emerged that the video surveillance system installed at the commercial establishment, consisting of two cameras capable of capturing both customers and employees, and that the related processing of personal data was carried out in the absence of the guarantee measures provided for under Article 4 of Law No. 300/1970, referenced by Article 114 of the Code, in relation to the presence of employees in the video-monitored premises.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation.

The processing of personal data carried out by the Company is unlawful, as outlined above, in relation to Articles 5, paragraph 1, letter a) (principle of lawfulness), 88 of the Regulation, and Article 114 of the Code regarding the protection of personal data.

The violation established in the terms of the reasoning cannot be considered "minor," taking into

account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see recital 148 of the Regulation). At the conclusion of the investigation and having established the unlawfulness of the conduct as described above, an injunction order must be adopted pursuant to Article 58, paragraph 2, letter i) of the Regulation for the application of an administrative pecuniary sanction.

Since the party has not provided a response to the Authority or submitted evidence of having complied with the provisions of Article 4 of Law No. 300/1970, it is also necessary to order, pursuant to Article 58, paragraph 2, letter f) of the Regulation, the prohibition of processing carried out through the video surveillance system, as it is suitable for the remote control of workers, until it has complied with the provisions of the Regulation, particularly Article 88 of the Regulation and Article 114 of the Code.

5. Injunction order.

The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, letters a) and d) of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the Company through the video surveillance system, the unlawfulness of which has been established in the terms outlined above, in relation to Articles 5, paragraph 1, letter a) and 88 of the Regulation, and Article 114 of the Code.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is noted that, in this case, the following circumstances have been taken into account:

- regarding the nature and severity of the violation, it is significant that it concerns the principles applicable to the processing referred to in Article 5 of the Regulation as well as compliance with the sector regulations referenced by Article 88 of the Regulation and the responsibility associated with the failure to implement the guarantee procedure provided for by Article 114 of the Code;
- the absence of specific previous violations by the Company related to breaches of personal data protection regulations;
- the circumstance that the Company did not cooperate during the procedure, having provided no evidence in its defense and failing to demonstrate to the Guarantor that it had complied with the guarantee procedures provided for by Law No. 300/1970 (so-called Workers' Statute);
- regarding the duration of the violation, it is particularly relevant that the Company has not provided any communication regarding the cessation of the unlawful processing, which is therefore considered still ongoing.

It is also believed that the following are relevant in this case:

******of the species, taking into account the aforementioned principles of effectiveness, proportionality, and deterrence to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation), the economic conditions of the offender, determined with reference to the income declaration for the tax year 2022. Based on the aforementioned elements, evaluated as a whole, it is deemed appropriate to set the amount of the monetary sanction at three thousand euros (€3,000.00) for the violation of articles 5, par. 1, lett. a), 88 of the Regulation and 114 of the Code. In this context, also considering the type of violation established, it is deemed that, pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Garante's regulation no. 1/2019, the publication of this provision on the Garante's website should proceed. Finally, it is noted that the conditions of art. 17 of regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Garante, are met.******

******ALL OF THE ABOVE HAVING BEEN STATED, THE Garante declares, pursuant to articles 57, par. 1, letters a) and h) and 83 of the Regulation, the illegality of the processing carried out by "Caffetteria 77" (VAT number 02965830355), through the use of the video surveillance system installed at the establishment "Caffetteria 77 Torrcaffé", located at via Alcide De Gasperi 7, Caponago (MB), in the terms stated in the motivation, for the violation of art. 5, par. 1, lett. a), 88 of the Regulation and art.

114 of the Code;**

ORDERS pursuant to art. 58, par. 2, lett. f) of the Regulation the prohibition of processing carried out through the video surveillance system, as it is suitable for remote monitoring of workers, until it has complied with the provisions of the Regulation, in particular art. 88 of the Regulation and 114 of the Code, providing for the activation of the guarantee measures provided for by art. 4 L.300/1970;

ORDERS pursuant to art. 58, par. 2, lett. i) of the Regulation, the sole proprietorship “Caffetteria 77” of Dughetti Barbara (VAT number 02965830355), to pay the sum of three thousand euros (€3,000.00) as an administrative monetary sanction for the violation indicated in the motivation;

ORDERS the same Company to pay the sum of three thousand euros (€3,000.00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to art. 27 of law no. 689/1981. It is represented that pursuant to art. 166, par. 8 of the Code, the offender retains the right to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in art. 10, par. 3, of legislative decree no. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

ORDERS pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Garante's regulation no. 1/2019, the publication of this provision on the Garante's website and considers that the conditions of art. 17 of regulation no. 1/2019 are met. It is also ordered that the initiatives undertaken to implement what is provided for by this provision be communicated and that adequately documented feedback be provided pursuant to art. 157 of the Code, within 30 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for by art. 83, par. 5, lett. e) of the Regulation.

Pursuant to art. 78 of the Regulation, articles 152 of the Code, and 10 of legislative decree no. 150 of September 1, 2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, May 9, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei